

23CMCV01001 23CMCV01001

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-02

Motion: MOTION TO SET ASIDE AND VACATE ORDER OF DISMISSAL DATE: September 2, 2026 TIME: 8:30 A.M.

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Case Number: 23CMCV01001 Hearing Date: September 2, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

Julio

Cesar Sandoval Madrid,

Plaintiff,

vs.

Margarita Robles Ortega

and DOES to 20, inclusive,

Defendants.

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CASE NO: 23CMCV01001

[TENTATIVE] ORDER RE: MOTION TO SET ASIDE
AND VACATE ORDER OF DISMISSAL

DATE: September 2, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff
Julio Cesar Sandoval Madrid

Responding Party: None

Notice: Ok

Tentative Ruling: Plaintiff's
Motion to Set Aside and Vacate Order of Dismissal is DENIED.

I.
BACKGROUND

This is an
action for personal injury. Plaintiff Julio Cesar Sandoval Madrid alleges that,
on July 9, 2021, Defendant Margarita Robles Orega backed her vehicle at a high
rate of speed and struck Plaintiff while he was standing in the parking lot of Plaza

Mexico shopping Center.

On July 3, 2023, Plaintiff filed this action against Ortega and Does 1 to 20, inclusive, alleging cause of action for: (1) Negligence and (2) Unsafe Backing.

Ortega filed her Answer on August 7, 2024.

At the January 14, 2026 Case Management Conference, the parties indicated to the Court that the matter had settled and the Court set an Order to Show Cause re: Dismissal for March 30, 2026. (See Minute Order, 1/14/26.)

At the March 30, 2026 Order to Show Cause Re: Dismissal (Settlement), neither party made an appearance and the Court dismissed Plaintiff's Complaint without prejudice with the Court retaining jurisdiction pursuant to Code of Civil Procedure § 664.6. (See Minute Order, 3/30/26.)

On July 30, 2026, Plaintiff filed the instant Motion to Set Aside and Vacate Order of Dismissal.

As of

August 28, 2026, no opposition or reply papers have been filed. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed

motion must be filed with the court and served on all other parties "at least nine court days ... before the hearing" and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal Standard

Code of Civil Procedure section

473(b) "provides for both discretionary and mandatory relief. [Citation.]" (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) An application for

relief under this section must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought, and must be accompanied by an affidavit of fault attesting the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code Civ. Proc. § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.) In addition, an application for relief under this section “shall be accompanied by a copy of the answer or other pleading proposed to be filed herein, otherwise the application shall not be granted.” (Code Civ. Proc. § 473(b).) Relief under this section is mandatory when based on an attorney affidavit of fault; otherwise, it is discretionary. (*Ibid.*)

B.

Discussion

Plaintiff moves for an order to set aside and vacate the dismissal pursuant to Code of Civil Procedure § 473(b), arguing that Plaintiff’s counsel mistakenly failed to appear at the March 30, 2026 hearing where the Court dismissed the matter and this mistake constitutes excusable neglect pursuant to Code of Civil Procedure § 473(b). Plaintiff’s counsel, Ricardo Antonio Perez (“Perez”) attaches a declaration attesting to failing to appear at the hearing on March 30, 2026 because of his mistake, inadvertence, surprise, and neglect. (Perez Decl., ¶4.)

Here, Plaintiff’s counsel does not state any facts substantiating any mistake, inadvertence, surprise, and/or excusable neglect that led to his failure to appear at the March 30, 2026 hearing. Instead, Perez simply attests in a summary fashion that he failed to appear on March 30, 2026 “because of [his] mistake, inadvertence, surprise, and neglect.” (Perez Decl., ¶ 4.) Plaintiff argues that if the motion is not granted, Plaintiff will suffer the loss of his right to a jury trial and to a trial on the merits. (Mot.; p. 3:13-14.) However, the parties have indicated to the Court that the matter has settled, (see Minute Order 1/14/2026) and the Court has dismissed the Complaint without prejudice pursuant to the parties’ settlement while retaining jurisdiction pursuant to Code of Civil Procedure § 664.6. As the parties have represented to the Court, a settlement agreement is in place. There is no indication or explanation as to why, if a settlement agreement is in place, this matter need be reinstated to the Court’s active calendar rather than simply enforcing the settlement agreement.

Accordingly, the Court DENIES

Plaintiff's Motion to Set Aside. The

Court's denial is without prejudice to Plaintiff presenting further argument detailing what exact mistake, inadvertence, surprise or excusable neglect warrants setting aside the dismissal and explaining why, if a settlement agreement is in place, the dismissal need be set aside